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25-CIV-09615 MIHOKO WARD VS. KYBA BAOHOANG THAI

LINE 8

MIHOKO WARD
KYBA BAOHOANG THAI

PRO PER

PLAINTIFF MIHOKO WARD'S MOTION FOR PRELIMINARY INJUNCTION, REQUEST FOR ORDER SHORTENING TIME AND REQUEST FOR REMOTE APPEARANCE

TENTATIVE RULING:

Plaintiff Mioko Ward's Motion for Preliminary Injunction is DENIED.

Plaintiff's Request for Order Shortening Time is summarily DENIED as moot.

Plaintiff's Request for Remote Appearance for this hearing is GRANTED.

Legal Authority

On a motion for preliminary injunction the court evaluates two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits of the claim at trial, and (2) the interim harm the plaintiff would be likely to suffer if the injunction is denied as compared to the harm that the defendant would be likely to suffer if the injunction is granted. (*Amgen Inc. v. Health Care Services* (2020) 47 Cal.App.5th 716, 731.) The weighing of these harms involves consideration of the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo. (*Donahue Schriber Realty Group, Inc. v. Nu Creation Outreach* (2014) 232 Cal.App.4th 1171, 1177.) The general purpose of an injunction is the preservation of the status quo until a final determination of the merits of the action. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.)

A preliminary injunction is not itself a cause of action. "[O]rdinarily, a preliminary injunction may be sought only when the underlying cause of action on which the provisional remedy rests is presented for decision through the pleadings." (*Department of Fair Employment and Housing v. Superior Court of Kern County* (2020) 54 Cal.App.5th 356, 384-385, citing *Moreno Mut. Irr. Co. v. Beaumont Irr. Dist.* (1949) 94 Cal.App.2d 766, 778 ["A preliminary injunction is warranted only if there is on file a complaint which states a sufficient cause of action for injunctive relief of the character embraced in the preliminary injunction."]); see generally Moore & Thomas, Cal. Civ. Practice (2020) Procedure, § 16:119.)

Injunctions are generally classified as either "prohibitory" or "mandatory." "[A]n injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act *that changes the position of the parties.*" *Davenport v. Blue Cross of Calif.* (1997) 52 Cal.4th 435, 446-448 (emphasis added) (rejecting "preservation of status quo" as test for prohibitory injunction). Mandatory injunctions are *rarely* granted: "The granting of a mandatory injunction pending trial is not permitted except in *extreme* cases where the right thereto is *clearly* established." *Teachers Ins. & Annuity Ass'n v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493.

Application

Here, Plaintiff's motion fails on multiple levels.

First, Plaintiff's complaint does not present a cause of action on which a provisional remedy is proper. Plaintiff's complaint alleges four causes of action for (1) Fraud and Intentional Misrepresentation, (2) Conversion, (3) Breach of Contract, and (4) Intentional Infliction of Emotional Distress. Complaint filed 12/8/2025. There is no cause of action for injunctive relief, nor any cause of action of the type where typically injunctive relief may be granted. See, *Department of Fair Employment and Housing v. Superior Court of Kern County* (2020) 54 Cal.App.5th 356, 384-385, citing *Moreno Mut. Irr. Co. v. Beaumont Irr. Dist.* (1949) 94 Cal.App.2d 766, 778; see also, CCP § 526.

Second, the motion fails to provide an adequate evidentiary basis to allow provisional relief. The motion seeks to enjoin Defendant "from transferring, concealing, dissipating, encumbering, or otherwise disposing of assets up to the amount in controversy, pending trial of the action, in order to preserve the status quo." Mtn., pg. 2, lines 1-3 (emphasis added). However, the Declaration of Mihoko Ward filed 12/15/2025 in support of this motion (hereinafter the "Ward Decl.") fails to identify a single quantifiable asset of Defendant, that Defendant might transfer, conceal, encumber, etc. The declaration attempts to establish alleged personal loans totaling \$44,000.00, and alleged misappropriation of another \$186,000.00 by Defendant. Ward Decl. ¶ 3. Apparently, this was when Plaintiff and Defendant were in a personal relationship and co-habiting from January 2023-March 2024. Complaint, ¶ 9 and page 8 (no line numbers, but between ¶¶ 19-20). In other words, Plaintiff provides zero evidentiary basis that funds that may have existed at some point (whether by loan or misappropriation) in January 2023-March 2024, are even still available at the time of this motion in June of 2026, or two to three years later.

Third, Plaintiff provides zero legal authority for the proposition that some unidentified injunctive relief is available for claims that largely are tantamount to a typical debt collection case.

Fourth and finally, Defendant was just personally served with the Summons and Complaint in this matter on June 2, 2026. POS filed 6/3/2026. Defendant's time to appear is thus still running. There is an insufficient showing that (1) plaintiff would prevail on the merits of the claim at trial, and (2) the Court is unable to weigh the interim harm to the plaintiff versus the interim harm to the defendant on the current record. See, *Amgen Inc. v. Health Care Services* (2020) 47 Cal.App.5th 716, 731.

Accordingly, Plaintiff Mioko Ward's Motion for Preliminary Injunction is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the Order of the Court by Minute Order, and the Court dispenses with the need for any Order after hearing on this motion.

NO MATTERS ON
UNLAWFUL DETAINER - LAW & MOTION CALENDAR

